



DEPARTMENT OF THE ARMY
U.S. ARMY CORPS OF ENGINEERS, GALVESTON DISTRICT
2000 FORT POINT ROAD
GALVESTON, TEXAS 77550

CESWG - RDC

29 May 2026

MEMORANDUM FOR RECORD

SUBJECT: US Army Corps of Engineers (Corps) Pre-2015 Regulatory Regime
Approved Jurisdictional Determination in Light of *Sackett v. EPA*, 143 S. Ct. 1322
(2023),¹ 2026-00152

BACKGROUND. An Approved Jurisdictional Determination (AJD) is a Corps document stating the presence or absence of waters of the United States on a parcel or a written statement and map identifying the limits of waters of the United States on a parcel. AJDs are clearly designated appealable actions and will include a basis of JD with the document.² AJDs are case-specific and are typically made in response to a request. AJDs are valid for a period of five years unless new information warrants revision of the determination before the expiration date or a District Engineer has identified, after public notice and comment, that specific geographic areas with rapidly changing environmental conditions merit re-verification on a more frequent basis.³ For the purposes of this AJD, we have relied on section 10 of the Rivers and Harbors Act of 1899 (RHA),⁴ the Clean Water Act (CWA) implementing regulations published by the Department of the Army in 1986 and amended in 1993 (references 2.a. and 2.b. respectively), the 2008 *Rapanos-Carabell* guidance (reference 2.c.), and other applicable guidance, relevant case law and longstanding practice, (collectively the pre-2015 regulatory regime), and the *Sackett* decision (reference 2.d.) in evaluating jurisdiction.

This Memorandum for Record (MFR) constitutes the basis of jurisdiction for a Corps AJD as defined in 33 CFR §331.2. The features addressed in this AJD were evaluated consistent with the definition of "waters of the United States" found in the pre-2015 regulatory regime and consistent with the Supreme Court's decision in *Sackett*. This AJD did not rely on the 2023 "Revised Definition of 'Waters of the United States,'" as amended on 8 September 2023 (Amended 2023 Rule) because, as of the date of this decision, the Amended 2023 Rule is not applicable in Texas due to litigation.

¹ While the Supreme Court's decision in *Sackett* had no effect on some categories of waters covered under the CWA, and no effect on any waters covered under RHA, all categories are included in this Memorandum for Record for efficiency.

² 33 CFR 331.2.

³ Regulatory Guidance Letter 05-02.

⁴ USACE has authority under both Section 9 and Section 10 of the Rivers and Harbors Act of 1899 but for convenience, in this MFR, jurisdiction under RHA will be referred to as Section 10.

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1. SUMMARY OF CONCLUSIONS.

Provide a list of each individual feature within the review area and the jurisdictional status of each one (i.e., identify whether each feature is/is not a water of the United States and/or a navigable water of the United States).

Feature Name	Feature Type	Latitude	Longitude	Acres/Linear Feet	Jurisdictional Status
Wetland 1	PFO	29.686415	-95.898255	1.84 acres	Non-adjacent, Non-jurisdictional
Wetland 2	PEM	29.686364	-95.896343	7.98 acres	Jurisdictional, Section 404
Wetland 3	PSS	29.686364	-95.896343	0.08 acres	Non-adjacent, Non-jurisdictional
Wetland 4	PFO	29.689337	-95.889696	0.03 acres	Non-adjacent, Non-jurisdictional
Stream 1	Non-RPW	29.688692	-95.893871	157 feet	Non-relatively permanent, Non-jurisdictional
Stream 2	RPW	29.689435	-95.892983	1,275 feet	Jurisdictional, Section 404

2. REFERENCES.

- a. Final Rule for Regulatory Programs of the Corps of Engineers, 51 FR 41206 (November 13, 1986).
- b. Clean Water Act Regulatory Programs, 58 FR 45008 (August 25, 1993).
- c. U.S. EPA & U.S. Army Corps of Engineers, Clean Water Act Jurisdiction Following the U.S. Supreme Court's Decision in *Rapanos v. United States & Carabell v. United States* (December 2, 2008)
- d. *Sackett v. EPA*, 598 U.S. 651, 143 S. Ct. 1322 (2023)
- e. 12 March 2025 Memorandum to the Field Between the U.S. Department of Army, U.S. Army Corps of Engineers, and the U.S. Environmental Protection Agency Concerning the Proper Implementation of "Continuous Surface Connection" Under the Definition of "Waters of the United States" Under the Clean Water Act

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3. REVIEW AREA. The review area includes two tracts, totaling 78.93 acres and located southwest of Farm-to-Market 1093 and Bois d'Arc Lane, (Latitude: 29.6866906 Longitude: -95.8953908) in Fulshear, Fort Bend County, Texas
4. NEAREST TRADITIONAL NAVIGABLE WATER (TNW), INTERSTATE WATER, OR THE TERRITORIAL SEAS TO WHICH THE AQUATIC RESOURCE IS CONNECTED. Brazos River
5. FLOWPATH FROM THE SUBJECT AQUATIC RESOURCES TO A TNW, INTERSTATE WATER, OR THE TERRITORIAL SEAS. Subject aquatic resources (Stream 2 and Wetland 2) flow downstream from the review area, via detention ponds, approximately 0.56 miles south to Bessie's Creek, a relatively permanent waterway (RPW). Bessie's Creek flows approximately 2.14 miles South to the Brazos River, which is a Traditionally Navigable Water at the point of confluence.
6. SECTION 10 JURISDICTIONAL WATERS⁵: Describe aquatic resources or other features within the review area determined to be jurisdictional in accordance with Section 10 of the Rivers and Harbors Act of 1899. Include the size of each aquatic resource or other feature within the review area and how it was determined to be jurisdictional in accordance with Section 10.⁶ N/A.
7. SECTION 404 JURISDICTIONAL WATERS: Describe the aquatic resources within the review area that were found to meet the definition of waters of the United States in accordance with the pre-2015 regulatory regime and consistent with the Supreme Court's decision in *Sackett*. List each aquatic resource separately, by name, consistent with the naming convention used in section 1, above. Include a rationale for each aquatic resource, supporting that the aquatic resource meets the relevant category of "waters of the United States" in the pre-2015 regulatory regime. The rationale should also include a written description of, or reference to a map in the administrative record that shows, the lateral limits of jurisdiction for each aquatic resource, including how that limit was determined, and incorporate relevant references used. Include the size of each aquatic resource in acres or linear feet and attach and reference related figures as needed.

⁵ 33 CFR 329.9(a) A waterbody which was navigable in its natural or improved state, or which was susceptible of reasonable improvement (as discussed in § 329.8(b) of this part) retains its character as "navigable in law" even though it is not presently used for commerce, or is presently incapable of such use because of changed conditions or the presence of obstructions.

⁶ This MFR is not to be used to make a report of findings to support a determination that the water is a navigable water of the United States. The district must follow the procedures outlined in 33 CFR part 329.14 to make a determination that water is a navigable water of the United States subject to Section 10 of the RHA.

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- a. TNWs (a)(1): N/A
- b. Interstate Waters (a)(2): N/A
- c. Other Waters (a)(3): N/A
- d. Impoundments (a)(4): N/A
- e. Tributaries (a)(5):
 - a. Stream 2 (1,275 linear feet): The review area includes 1,275 linear feet of a relatively permanent tributary to Bessie's Creek. This stream has a bed and bank, ordinary high water mark, and perennial flow with a direct continuous surface connection via Wetland 2 and a series of relatively permanent detention ponds to Bessie's Creek, which has a direct connection with downstream traditionally navigable water Brazos River. Due to this rationale, the Corps considers this portion of Stream 2 to be jurisdictional under Section 404 of the Clean Water Act.
- f. The territorial seas (a)(6): N/A
- g. Adjacent wetlands (a)(7):
 - a. Wetland 2 (7.98 acre): The review area includes 7.98 acres of a palustrine emergent wetland. This wetland directly abuts a relatively permanent tributary to Bessie's Creek, which flows south offsite through a relatively permanent series of detention ponds before connecting to Bessie's Creek, a relatively permanent water, which ultimately flows to the Brazos River, a traditionally navigable water. Due to this rationale, the Corps considers Wetland 2 to be jurisdictional under Section 404 of the Clean Water Act.

8. NON-JURISDICTIONAL AQUATIC RESOURCES AND FEATURES

- a. Describe aquatic resources and other features within the review area identified as "generally non-jurisdictional" in the preamble to the 1986 regulations (referred to as "preamble waters").⁷ Include size of the aquatic resource or feature within the review area and describe how it was determined to be non-jurisdictional under the CWA as a preamble water. N/A
- b. Describe aquatic resources and features within the review area identified as "generally not jurisdictional" in the *Rapanos* guidance. Include size of the aquatic

⁷ 51 FR 41217, November 13, 1986.

resource or feature within the review area and describe how it was determined to be non-jurisdictional under the CWA based on the criteria listed in the guidance.

N/A

- c. Describe aquatic resources and features identified within the review area as waste treatment systems, including treatment ponds or lagoons designed to meet the requirements of CWA. Include the size of the waste treatment system within the review area and describe how it was determined to be a waste treatment system. N/A
- d. Describe aquatic resources and features within the review area determined to be prior converted cropland in accordance with the 1993 regulations (reference 2.b.). Include the size of the aquatic resource or feature within the review area and describe how it was determined to be prior converted cropland. N/A
- e. Describe aquatic resources (i.e. lakes and ponds) within the review area, which do not have a nexus to interstate or foreign commerce, and prior to the January 2001 Supreme Court decision in “*SWANCC*,” would have been jurisdictional based solely on the “Migratory Bird Rule.” Include the size of the aquatic resource or feature, and how it was determined to be an “isolated water” in accordance with *SWANCC*. [N/A or enter rationale/discussion here.] N/A
- f. Describe aquatic resources and features within the review area that were determined to be non-jurisdictional because they do not meet one or more categories of waters of the United States under the pre-2015 regulatory regime consistent with the Supreme Court’s decision in *Sackett* (e.g., tributaries that are non-relatively permanent waters; non-tidal wetlands that do not have a continuous surface connection to a jurisdictional water).
 - a. **Wetland 1 (1.84 acre), Wetland 3 (0.08 acre), and Wetland 4 (0.03 acre);** Based on data sources list in #9 and our 27 April 2026 desk review, we have determined these wetlands to be non-jurisdictional. Wetland 1, Wetland 3, and Wetland 4 do not abut Wetland 2 or Stream 2 and do not appear to have any known continuous surface connection to Wetland 2 or Stream 2. Based on the desk review, there are no elevation signatures to indicate a swale, erosional feature, ditch or culvert that would potentially serve as a surface connection to Stream 2 or Wetland 2. No more than overland sheet flow would exit the wetlands. Therefore, Wetland 1, Wetland 3, or Wertland 4 do not meet the definition of adjacent as defined in the pre-2015 regime post *Sackett* guidance and are not waters of the United States subject to Section 404 of the Clean Water Act.

- b. Stream 1 (157 linear feet);** Based on data sources listed in #9 and our 27 April 2026 desk review, we have determined this stream is non-jurisdictional. Stream 1 is a non-relatively permanent stream. The site visit photographs provided in the delineation report indicate the features lack an ordinary high water mark, and a bed and bank. Therefore, in accordance with the pre-2015 regime post-Sackett and the 12 March 2025 Memorandum to the Field Between the U.S. Department of Army, U.S. Army Corps of Engineers, and the U.S. Environmental Protection Agency Concerning the Proper Implementation of “Continuous Surface Connection” Under the Definition of “Waters of the United States” Under the Clean Water Act, Stream 1 does not meet the definition of adjacent as defined in the pre-2015 post Sackett guidance and is not a water of the United States subject to Section 404 of the Clean Water Act.
- 9. DATA SOURCES. List sources of data/information used in making determination. Include titles and dates of sources used and ensure that information referenced is available in the administrative record.
 - a. Desk Review: 27 April 2026
 - b. Maps, plans, plots and data submitted by or on behalf of the applicant: Wetland Delineation Report received February 2026
 - c. United States Department of Interior (DOI), Fish and Wildlife Service (FWS), National Wetland Inventory (NWI): FWS NWI ESRI Layer
 - d. USACE Texas Regulatory Viewer USGS Topographic Map Layer
 - e. USACE Texas Regulatory Viewer 3 DEP Digital Elevation Model (DEM)
- 10. OTHER SUPPORTING INFORMATION. N/A.
- 11. NOTE: The structure and format of this MFR were developed in coordination with the EPA and Department of the Army. The MFR’s structure and format may be subject to future modification or may be rescinded as needed to implement additional guidance from the agencies; however, the approved jurisdictional determination described herein is a final agency action.

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PREPARED BY:



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Date: 29 May 2026

REVIEWED/APPROVED BY:



K. Marie Taylor
Leader, Central Branch
Regulatory Division, Galveston District

Date: 29 May 2026

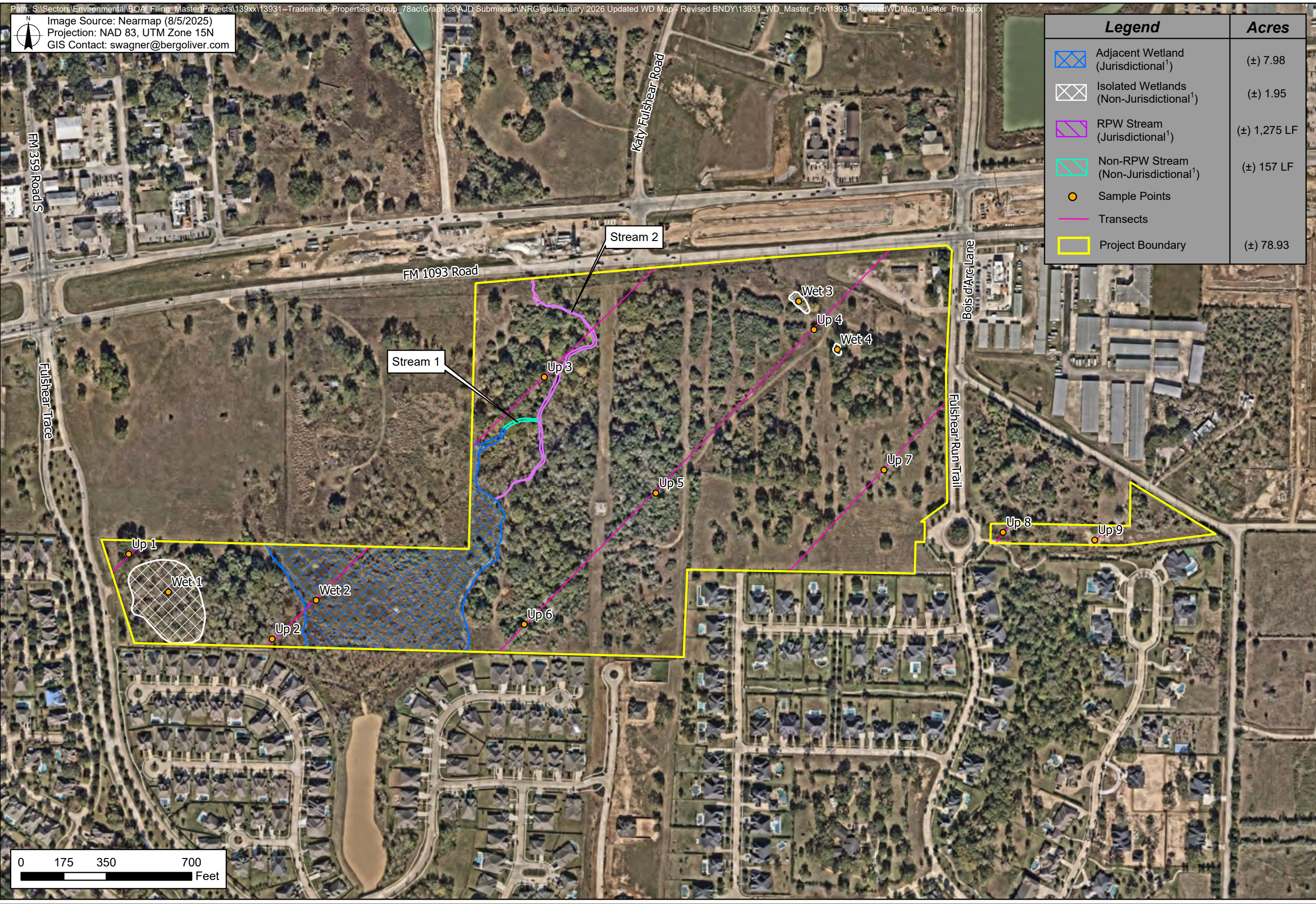


FIGURE 11 - AQUATIC RESOURCES DETERMINATION AND CLASSIFICATION

Project #: 13931.003 WD

For: Trademark Properties Group

Location: SW of FM 1093 & Bois D'Arc Lane
Fort Bend County, Texas

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EVALUATION
DATE: 1/13/2026

REVISIONS

¹Disclaimer: Potential features depicted have been classified based upon Berg Oliver Associates' professional opinion. The Corps of Engineers is the final authority on jurisdictional features.